

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-25

20230930-DK-BUTTERFLY-1, INC.

V.

CMA CGM S.A.

MOTION TO DISMISS COMPLAINT WITH PREJUDICE

Pursuant to the Presiding Officer’s Order Granting Joint Motion for Approval of Settlement Agreement, dated August 12, 2026, and in accordance with 46 C.F.R. § 502.72(a)(3), Complainant 20230930-DK-Butterfly, Inc. (“Complainant”) hereby moves to dismiss the above-captioned matter with prejudice pursuant to the terms of the Parties’ Confidential Settlement Agreement and Mutual Release (the “Agreement”).

The Parties’ Agreement was submitted to the Presiding Officer in support of the Parties’ Joint Motion for Approval and Confidential Treatment of Settlement Agreement and Mutual Release. Under the terms of the Agreement, Complainant agreed to move to dismiss its Complaint with prejudice upon receipt of the agreed settlement funds, which it has received.

Accordingly, Complainant respectfully requests that the Presiding Officer enter an order dismissing the Complaint with prejudice pursuant to 46 C.F.R. § 502.72(a)(3) and the approved Agreement.

[SIGNATURE PAGE FOLLOWS]

Dated: August 13, 2026

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/s/ J. Zachery Morris

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent CMA CGM S.A. by emailing a copy to their counsel of record listed below:

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Dated: August 13, 2026

/s/ J. Zachery Morris
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